

Critical thinking

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For the first exercise, making an Electronic database for Auto Repair that compiles information for all makes and models from 2006 onward raises several important intellectual property concerns. The majority of the data that is described, such as repair manuals, exploded diagrams, wiring schematics, and technical service bulletins, is protected under copyright law. The copyright law protects original works of authorship, including technical documents and visual diagrams, meaning that scanning and uploading these materials without permission would likely be copyright infringement. (U.S. Copyright Office, 2025)

Similarly, the information included in the database may be protected as trade secrets. Automobile manufacturers often develop diagnostic procedures and repair techniques that are not intended for public distribution. If this type of confidential information were to be included without authorization, it could lead to legal consequences. Trademarks could also be involved when using brand names, logos, and specific model identifiers. While simply referencing a car brand is usually acceptable, the use of logos or branding that is used improperly, however, could create legal issues.

Yet there are ways to address these challenges; one of the most effective approaches is obtaining licensing agreements from content owners, such as automotive manufacturers or publishers for repair manuals. Licensing would also enable the legal use of copyrighted material under a fee or revenue-sharing agreement. Another option is just using publicly available data. For example, recall information and safety reports provided by the government agencies can be used freely because they are part of the public domain.

When it comes to protecting intellectual property also, teams that the source can also be internal, instead of relying on sources to get our information. The database can be created and the

information can be researched and properly highlighted within the domain of the database. What this means is that from our end we'd have to consider, how to protect our intellectual property. Copyrighting the database structure, user interface, and any original content, second depending on the way we have integrated the interface of the database, and search queries we might have to patent if they qualify for innovation and finally have a terms of service and agreement for digital products. This can prevent unauthorized copying or redistributing of their database. This way our intellectual property is safe and protected.

In our other scenario, as a member of human resources in a silicon Beach tech company, deciding whether to implement noncompete clause for new hires requires a careful consideration of both legal and ethical factors. For the most part these types of clauses are designed to prevent employees from working with competitors or starting a business for a certain period of time. While this can seem beneficial for the company these are often controversial and often restricted by law. In a place like California especially where silicon beach is located. A noncompete clause are unenforceable. According to California Business and Profession, trade, or business is considered void. (*California Legislative Information*, n.d.) This legal framework is in place to promote innovation, competition and employee mobility, all which are essential to technology industry.

In this context a noncompete clause would not only be ineffective but also could expose the company to legal risks and backlash. Attempting to add this clause can harm the company's reputation and make it less attractive for new hires and potential employees. In a competitive job market, especially in tech, candidates are more likely to choose employers who offer flexibility and respect their careers. Instead of considering NDAs, to protect their intellectual properties this

can legally prevent employees from sharing confidential information with competitors. This can help the overall health of sensitive data, like trade secrets, client lists, and internal processes.

However this is about, retaining these employees as well, and this noncompete clause hinders that. Instead companies like this one can focus on retaining employees through positive workplace practices. Benefits, competitive salaries, career growth, and a supportive work environment.

In conclusion, noncompete clauses may seem harmless and a way to protect business interests. Yet in places like California, they are unenforceable, and so using them could reflect badly, and overall the employee satisfaction might make the reputation of the tech company worse. Yet there are other ways to continue to protect intellectual properties, trade secrets, and employee retention.

References

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